



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council

From: Jeanie Vetter, PLA, Parks and Greenway Planner

Subject: Public Hearing for Disposal of Real Property and Trade Agreement for land for Greater Cheyenne Greenway, Sun Valley to Kiwanis Park Connector

Date: April 5, 2023

1. The MOU outlining responsibilities for the proposed property exchange with Sun Valley Estates LLC, Contract #7642, was approved by Council and signed by the Mayor on November 29, 2022. Since this time, all responsibilities of both the city and the Developer have been met.
2. The plat for this project was approved by Council on February 27, 2023, and is awaiting recordation based on Council's approval of this agreement.
3. Pursuant to Wyoming Statute 15-1-112, staff has completed all steps associated with the disposal of city-owned real property for the purposes of trading property for a future Greenway corridor and trail. City staff has reviewed and approved the associated property as outlined in the City of Cheyenne checklist for disposal/trade of real property.
4. Pursuant to Wyoming Statute 15-1-112(b)(ii) An advertisement of the proposed trade has been published for three (3) weeks in the local newspaper. March 11th, 18th and 25th. An announcement of a public hearing is included on this agenda for tonight's City Council meeting, for public comment.
5. The trade/sale agreement has been reviewed by all interested parties. The item will be placed on the Finance Committee agenda for Monday, April 17th for further recommendation and final reading for approval by the governing body will take place on Monday, April 24th. Once approved by the governing body and signed by all interested parties, the process shall proceed to closing for final execution.

Thank you in advance for your consideration. If you have any question, please feel free to contact me.

Respectfully,
Jeanie Vetter

Enclosures:

Land Swap Purchase and Sale Agreement

Exhibit A Land Description Exhibit for City of Cheyenne Greenway Parcel Land Swap

Sun Valley to Kiwanis Park Connector Exhibit

CITY CONTRACT # _____

AGREEMENT FOR THE PURCHASE, SALE, AND EXCHANGE OF LANDS

This Agreement for the Purchase, Sale and Exchange of Lands ("Agreement") is made effective as of the date of execution ("Effective Date") of the last signing party below, and entered into by and between the City of Cheyenne, Wyoming, a municipal corporation organized under the laws of the State of Wyoming, having its principal offices at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("City"), and Sun Valley Estates LLC, 2116 Pioneer Avenue, Cheyenne, Wyoming 82001 and sometimes individually referred to herein as "Party" and collectively as "Parties."

WHEREAS, the City owns the surface and subsurface estate to a portion of that parcel situated in Section 2, Township 13 North, Range 66 West of the 6th P.M., City of Cheyenne, Laramie County, Wyoming and described at Book 2763, Page 1714 in the real estate records of the Laramie County Clerk; said portion being more particularly described as follows:

Beginning at the Northeasterly corner of Lot 12, Block 2, Centennial Heritage, from which the Northwest corner of Section 2 has an azimuth of 337°35'24", a distance of 649.56 feet, said point being on the South line of Sun Valley Addition, 13th Filing; thence along said South line, 90°12'24", a distance of 150.00 feet; thence 180°12'54", a distance of 56.08 feet, thence 248°12'15", a distance of 129.90 feet, thence 158°12'15", a distance of 55.81 feet, thence 248°12'15", a distance of 54.42 feet to the East line of said Lot 12, Centennial Heritage; thence 0°12'15", along said East line, a distance of 176.89 feet to the Point Of Beginning.

("Parcel B"), encompassing .35 acres (15,365 square feet, more or less) and having an appraised value of One Hundred Thousand Dollars (\$100,000.00), which parcel is particularly described in "Exhibit A – Legal Description and survey of Parcels A and B," attached to this Agreement and incorporated herein by this reference;

WHEREAS, Sun Valley Estates LLC owns a surface and subsurface estate to a tract of land being a portion of Lots 8, 9, 10, 11 and 12, Block 2, Centennial Heritage, City of Cheyenne, Laramie County, Wyoming, being more particularly described as follows:

Beginning at the Southeasterly corner of said Lot 12; thence 238.99 feet, along a curve concave to the Northwest, being the South line of said Block 2, (having a radius of 1709.86 feet, delta of 08°00'30", and whose long chord bears 266°21'39", a distance of 238.80 feet) to the Southwesterly corner of said Lot 10; thence 359°33'26" along the Westerly line of said Lot 10, a distance of 59.95 feet to the Southeasterly corner of said Lot 9; thence 170.75 feet, along a curve concave to the northwest, being the South line of said Block 2, (having a radius of 3619.83 feet, delta of 02°42'09", and whose long chord bears 264°38'49", a distance of 170.73 feet) to the Southwesterly corner of said Lot 8; thence

06°26'47" along the Westerly line of said Lot 8, a distance of 30.48 feet; thence 167.01 feet, along a curve concave to the Northwest (having a radius of 3589.83 feet, delta of 02°39'56", and whose long chord bears 84°34'38", a distance of 167.00 feet); thence 89°22'57", a distance of 24.99 feet; thence 142°40'52", a distance of 56.47 feet; thence 33.79 feet, along a curve concave to the Northeast, (having a radius of 35.00 feet, delta of 55°18'28", and whose long chord bears 115°01'38", a distance of 32.49 feet); thence 135.03 feet, along a curve concave to the Northwest, (having a radius of 1679.86 feet, delta of 04°36'20", and whose long chord bears 85°04'14", a distance of 135.00 feet); thence 338°12'15", a distance of 9.36 feet; thence 68°12'15", a distance of 21.08 feet to the East line of said Lot 12; thence 180°12'15" along said East line, a distance of 44.70 feet to the Point Of Beginning.

("Parcel A"), encompassing .35 acres (15,366 square feet, more or less) and having an appraised value of One Hundred Thousand Dollars (\$100,000.00), which parcel is particularly described in "Exhibit A – Legal Description and survey of Parcels A and B," attached to this Agreement and incorporated herein by this reference;

WHEREAS, the City desires to trade Parcel B to Sun Valley Estates LLC for Parcel A;

WHEREAS, Sun Valley Estates LLC wishes to trade Parcel A to the City for Parcel B;

NOW THEREFORE, in consideration of the mutual benefits and obligations set forth in this Agreement:

1. Purpose of Agreement. Subject to the terms and conditions set forth in Paragraphs 2-15:

- a. The City agrees to sell to Sun Valley Estates LLC, and Sun Valley Estates LLC agrees to purchase from the City, Parcel B;
- b. The City shall convey Parcel B to Sun Valley Estates LLC, pursuant to Wyo. Stat. § 15-1-112(b)(ii) (West 2022); and,
- c. Sun Valley Estates LLC agrees to trade Parcel A in exchange for Parcel B.

2. Terms of the Agreement.

- a. All improvements, structures, and fixtures situated on Parcel B will be conveyed to Sun Valley Estates LLC in an "as is" condition without any representations or warranties relating to Parcel A's physical condition and without ascribing any value to them.

b. The City agrees to trade Parcel B to Sun Valley Estates LLC in exchange for Parcel A, all improvements, structures, and fixtures situated on Parcel A will be conveyed to the City in an “as is” condition without any representations or warranties relating to Parcel A’s physical condition and without ascribing any value to them.

c. No money will change hands. Any additional value shall be donated by Sun Valley Estates LLC to the City. This transaction is subject to the requirement that Sun Valley Estates LLC completes an IRS form W-9 and otherwise cooperates with the City in reporting the Purchase Price and the other terms and conditions of this Agreement to the Internal Revenue Service as required by law. Prior to the date of closing, the parties shall secure the release and discharge of all mortgages, liens, assessments, leases, rental agreements, advertising sign leases, if any, and other claims which encumber the Real Property. The City shall have the right to cancel this Agreement in the event Sun Valley Estates LLC is unable or otherwise fails, neglects, or refuses to convey good and marketable title to the City in accordance with the terms and conditions of this Agreement.

3. Payment of Taxes. Prior to closing, Sun Valley Estates LLC shall pay, when due and payable, all property taxes and assessments asserted against the Real Property for Parcel A for the current year and for all prior years. All such taxes for the current year shall be apportioned between the Parties on a pro rata basis as of the date of closing.

4. Title.

a. Prior to closing, the City shall have the right to obtain a Title Commitment for Parcel A (the “Title Commitment”) at the City’s sole cost and expense. In the event the Title Commitment shows that Sun Valley Estates LLC is not vested with a good, marketable, and insurable fee simple title to Parcel A, or that the Real Property is subject to liens, encumbrances, taxes, or assessments which will not be discharged prior to closing, the City shall have the right, in its sole and absolute discretion, to declare this Agreement null and void.

b. Within ten (10) days following the receipt of the Title Commitment from the City, Sun Valley Estates LLC shall deliver to the City the following:

i. True, complete, and legible copies of all documents referred to in the Title Commitment to the extent that any such document has not been filed for record in the office of the Laramie County Clerk and ex-officio register of deeds;

ii. True, complete, and legible copies of all documents that are known to Seller, that are not referred to in the Title Commitment and that may affect the marketability of title to Parcel A;

iii. True and complete copies or originals of any lease or occupancy agreements for any portion of Parcel A;

iv. All mortgages, notes, and loan documents for any mortgage which encumbers Parcel A on the date hereof, which mortgages, notes, and loan documents shall be discharged prior to closing; and

v. Copies of all materials relating to pending or present litigation involving Parcel A.

c. The City shall have twenty (20) business days from the date of receipt of the Title Commitment referred to in Section 4 in which to examine the same. If the City finds title to the Real Property to be other than as described in Section 4(a) hereof, the City shall, no later than the expiration of said period of twenty (20) business days, notify Sun Valley Estates LLC in writing specifying the defect or defects; provided, that if the City fails to give Sun Valley Estates LLC written notice of such defects before the expiration of said period of twenty (20) business days, the defects shown in the Title Commitment or in documents provided by Sun Valley Estates LLC shall be deemed to be Permitted Exceptions and waived as title objections. The City may raise as additional objections, however, any defect first shown by any title update between the date of the Title Commitment and the closing date by giving Sun Valley Estates LLC written notice of any such defect within five (5) business days after the City first has notice of same. If the City has given Sun Valley Estates LLC timely written notice of defects that render the title other than as required by this Agreement ("Defects"), Sun Valley Estates LLC shall use their best efforts to cause such Defects to be cured within ten (10) days following receipt of such notice. In the event Sun Valley Estates LLC fails to eliminate such Defects, the City shall have the right to terminate this Agreement. In the event Sun Valley Estates LLC creates any liens or encumbrances on Parcel B which are capable of being satisfied by the payment of money at the closing, Sun Valley Estates LLC shall be obligated to use the Purchase Price, if any, to cure the Defects.

d. The date for elimination of the Defects may be extended until closing. In the event Sun Valley Estates LLC does not eliminate any Defect prior to or at closing, as the same may be extended under the preceding provision, the City shall have the option of either: (i) closing and accepting the title "as is," without reduction in the Purchase Price, or (ii) cancelling this Agreement. In the event of a Defect that was not caused by Sun Valley Estates LLC Company LP's failure to act, Sun Valley Estates LLC's only responsibility shall be to assign to the City Sun Valley Estates LLC's Title Insurance Policy or Sun Valley Estates LLC's rights under Sun Valley Estates LLC's Title Insurance Policy, whichever is applicable, and cooperate with the City in obtaining the assistance of Sun Valley Estates LLC's title insurer to remove the Defect.

e. Sun Valley Estates LLC shall not create any new exceptions to title and shall use his best efforts to prevent any other person or entity from creating new

exceptions to title to the Real Property prior to closing.

5. Conditions Precedent.

a. The City's obligation to close this transaction shall be subject to fulfillment of the following conditions precedent:

i. Sun Valley Estates LLC shall, at Sun Valley Estates LLC's sole cost and expense, obtain releases, at or prior to closing, for all liens or encumbrances affecting the Real Property pursuant to the terms of this Agreement.

ii. Sun Valley Estates LLC shall not be in default in its obligations under this Agreement.

iii. The Escrow Agent, at the expense of the City, shall be prepared to deliver a Title Insurance Policy in a form acceptable to the City ("Title Policy") insuring the City's title to the Real Property in accordance with the terms of this Agreement.

b. In the event any of the foregoing conditions precedent are not fulfilled as of closing (or earlier date where specified otherwise), then the City shall have the option of either: (i) waiving the condition and closing "as is" without reduction in the Purchase Price, provided that Sun Valley Estates LLC assigns to the City all of Sun Valley Estates LLC's right, title, and interest to the Title Insurance Policy it obtained when it acquired the Property, or (ii) cancelling this Agreement by written notice to Sun Valley Estates LLC.

6. Sun Valley LLC's Representations and Warranties.

a. Sun Valley Estates LLC hereby represents and warrants to the City that the following are true statements as of the date of this Agreement and shall be true as of the date of closing, and Sun Valley Estates LLC agrees to deliver a certificate confirming that the following representations and warranties are true as of the date of the closing.

i. Sun Valley Estates LLC has full power and authority to sell and convey the Real Property and to execute this Agreement and such other documents described herein.

ii. Sun Valley Estates LLC now has, and will have at closing, good, marketable, and indefeasible title in fee simple to the Real Property subject to the Permitted Exceptions and no Party, except as herein set forth, has, or shall have any right in, or to acquire, the Real Property.

iii. At closing, the Real Property shall be free and clear of all encumbrances except the Permitted Exceptions as set forth in this Agreement.

iv. At closing, the Real Property shall be free from all actions, suits, claims, assessments, or proceedings pending or, to the knowledge of King Ranch, threatened that could materially adversely affect the ownership, operation, or maintenance of the Real Property or Sun Valley Estates LLC's ability to perform hereunder.

v. To the best of Sun Valley Estates LLC's knowledge, the Real Property and Sun Valley Estates LLC are not currently in violation of or subject to: (i) any existing, pending, or threatened investigation or inquiry by any governmental authority; or (ii) any remedial obligations under any applicable laws pertaining to health or the environment (hereinafter sometimes collectively called "Applicable Environmental Laws"), including, without limitation, the Comprehensive Environmental Response, Compensation and Liability Act of 1980, as amended ("CERCLA"), and the Resource Conservation and Recovery Act of 1976, as amended ("RCRA"). Sun Valley Estates LLC shall have no obligation to remove or take any action to cure or remediate any environmentally hazardous material from the Real Property if any environmentally hazardous material is found on the Real Property.

vi. Sun Valley Estates LLC does not have knowledge of any hazardous substances or solid wastes that have been disposed of or otherwise released on the Real Property. The terms "hazardous substance" and "release" shall have the meanings specified in CERCLA, and the terms "solid waste" and "disposal" or "disposed" shall have the meanings specified in RCRA; provided, to the extent that the laws of the State of Wyoming establish a meaning for "hazardous substance," "release," "solid waste," or "disposal" that is broader than that specified in either CERCLA or RCRA, such broader meaning shall apply.

vii. There are no parties in possession of any portion of the Real Property, whether as lessees, tenants at sufferance, trespassers, or otherwise.

b. Sun Valley Estates LLC shall not intentionally cause any of the representations and warranties contained herein to become materially incorrect, nor authorize any action which would do so. If after the execution of this Agreement and on or before closing, Sun Valley Estates LLC nonetheless has knowledge that any of the representations and warranties set forth herein have become incorrect in any respect ("Discrepancy"), Sun Valley Estates LLC shall promptly notify the City, in writing, of the occurrence of such event. The City shall have a right to approve or disapprove any such Discrepancy, which approval or disapproval shall be given by written notice

delivered to Sun Valley Estates LLC within ten (10) days prior to the closing for the City to evaluate the effect of such Discrepancy. If the City waives such Discrepancy, and elects to acquire the Real Property, Sun Valley Estates LLC's representations and warranties contained herein shall be deemed to have been made as of the closing, subject to the waived Discrepancy. If the City disapproves of the Discrepancy, and Sun Valley Estates LLC fails to cure same, then upon written notice thereof to Sun Valley Estates LLC, this Agreement shall be terminated, and all rights and obligations of the Parties hereunder shall terminate.

c. Except for the representations of Sun Valley Estates LLC set forth in Section 6 that shall survive for one (1) year from the closing, the express representations and warranties made in this Agreement shall merge into any instrument or conveyance delivered at closing and shall not survive closing.

7. Risk of Loss. The Real Property shall be conveyed to the City in substantially and materially the same condition as on the date this Agreement is executed by the City, ordinary wear and tear excepted.

8. Default Provisions.

a. In the event of the wrongful failure or refusal of the City to close this transaction after sixty (60) days written notice, Sun Valley Estates LLC shall be entitled to those remedies as may be provided by law.

b. In the event of Sun Valley Estates LLC's failure to close in accordance with the terms and provisions of this Agreement for sixty (60) days after written notice, the City, at its option and as the City's sole and exclusive remedy for default of Sun Valley Estates LLC, shall have the right either to terminate this Agreement or seek specific performance of Sun Valley Estates LLC's obligations hereunder.

9. Closing Costs and Expenses. At closing, the City shall pay the cost of the Title Insurance Policy to be issued to the City and the cost of the survey, and all recording fees necessary to record instruments received by the City at closing. Sun Valley Estates LLC shall pay the recording costs with respect to documents necessary to clear title at closing and all instruments received by Sun Valley Estates LLC at closing. The closing agent's fee shall be paid equally by Sun Valley Estates LLC and City. Each Party shall pay that Party's attorney's fees, if any.

10. Closing.

a. The closing of this transaction shall be held on _____, 2023, after the satisfaction of all the conditions of closing ("Closing Date"). The parties agree that First American Title Company shall prepare the closing documents.

- b. At closing, Sun Valley Estates LLC shall deliver:
 - i. A warranty deed duly executed and acknowledged in proper form for recording conveying to the City good and indefeasible fee simple title in and to Parcel B, subject only to the Permitted Exceptions;
 - ii. An assignment of all rights appurtenant to the Parcel A, if any, as provided above;
 - iii. A title affidavit and a mechanic's lien affidavit;
 - iv. An affidavit of exclusive possession;
 - v. A certificate, or other document as acceptable to the City, confirming Sun Valley Estates LLC's authority to sell Parcel B; and,
 - vi. Such other documents as are usually required to insure the City's title.
- c. At closing, the City, at the City's expense, shall deliver:
 - i. A warranty deed duly executed and acknowledged in proper form for recording conveying to the City good and indefeasible fee simple title in and to Parcel A, subject only to the Permitted Exceptions;
 - ii. An assignment of all rights appurtenant to Parcel B, if any, as provided above;
 - iii. City shall receive an Owner's Title Insurance Policy in a form acceptable to the City, issued by a Title Insurance Company in the full amount of the Purchase Price, insuring the City's indefeasible fee simple title to Parcel B, subject only to the Permitted Exceptions and the printed exceptions contained in the standard form of Sun Valley Estates LLC Title Insurance Policy.

11. Brokers. The Parties each represent and warrant to the other that no Party to this transaction shall be responsible for the payment of any compensation or commission due any real estate agent, broker, salesman, or finder unless that Party has engaged the real estate agent, broker, salesman, or finder in writing. If a claim for compensation or commission in connection with this transaction is made by any agent, broker, salesman, or finder claiming to have dealt through or on behalf of one of the Parties hereto, such Party shall indemnify, defend, and hold harmless the other Parties hereunder from and against all liabilities, damages, claims, costs, fees, and expenses whatsoever (including reasonable attorney's fees and court costs at all trial and

occupancy or conditions affecting the Real Property; and

g. Provide the City and its representatives, employees, and agents full and complete access during normal business hours to the Real Property and adjacent areas as provided in this Agreement.

15. Miscellaneous.

a. This Agreement shall be construed and governed in accordance with the laws of the State of Wyoming. Except for enforcement of the terms and conditions of this Agreement as between the Parties, the City reserves all defenses and immunities under the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, *et seq.*, and other applicable constitutional and statutory provisions of the State of Wyoming. The venue for any legal proceedings shall be the First Judicial District Court sitting in Laramie County, Wyoming.

b. In the event any term or provision of this Agreement be determined by appropriate judicial authority to be illegal or otherwise invalid, such provision shall be given its nearest legal meaning or be construed as deleted as such authority determines, and the remainder of this Agreement shall be construed to be in full force and effect.

c. Any exhibits attached to this Agreement are incorporated in and made a part of this Agreement.

d. This Agreement constitutes the entire understanding and agreement between the Parties, and there are no understandings, agreements, representations, or warranties except as specifically set forth herein.

e. This Agreement may not be changed, altered, or modified except by an instrument in writing signed by the Party against whom enforcement of such change would be sought.

f. This Agreement shall be binding upon the Parties hereto and their respective successors and assigns.

g. The failure of any Party at any time or times to require performance of any provision hereof shall in no manner affect its right at a later time to enforce the same. No waiver by any Party of any condition, or of any breach of any covenant, agreement, representation, or warranty contained in this Agreement, in any one or more instances, shall be deemed to be or construed as a further or continuing waiver of any such condition or breach or waiver of any other condition or of any breach of any other covenant, agreement, representation, or warranty.

h. If the final date of any period provided for herein for the performance of an obligation or for the taking of any action falls on a Saturday, Sunday, or banking holiday, then the time of that period shall be deemed extended to the next day which is not a Sunday, Saturday, or banking holiday. All time periods expiring on a specific date or period herein shall be deemed to expire at 5:00 p.m. Mountain Standard or Mountain Daylight Time, as applicable.

i. This Agreement may be executed in any number of counterparts, each of which, when so executed and delivered, shall be deemed an original, but such counterparts together shall constitute but one agreement.

j. During the term of this Agreement, Seller shall not list the Real Property for sale, rent, or exchange or otherwise offer the Real Property for sale, rent, or exchange. Seller shall have the right to disclose this Agreement to any lending institution.

k. City shall accept and cooperate with Sun Valley Estates LLC or Robert Chamberlain's donation of any additional value above the appraised values given to City to the City's benefit because of the trade contemplated herein.

[Signatures on following page]

In witness thereof, the Parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this Agreement.

CITY OF CHEYENNE:

Patrick Collins, Mayor

Date

(SEAL)

Attest:

Kristina F. Jones, City Clerk

STATE OF WYOMING)
) SS.
COUNTY OF LARAMIE)

The foregoing instrument was acknowledged before me by Patrick Collins, Mayor of the City of Cheyenne, Wyoming, on this _____ day of _____, 2022.

Witness my hand and official seal.

Notary Public

My Commission Expires: _____

Sun Valley Estates LLC

Robert Chamberlain

Date

STATE OF WYOMING)
) SS.
COUNTY OF LARAMIE)

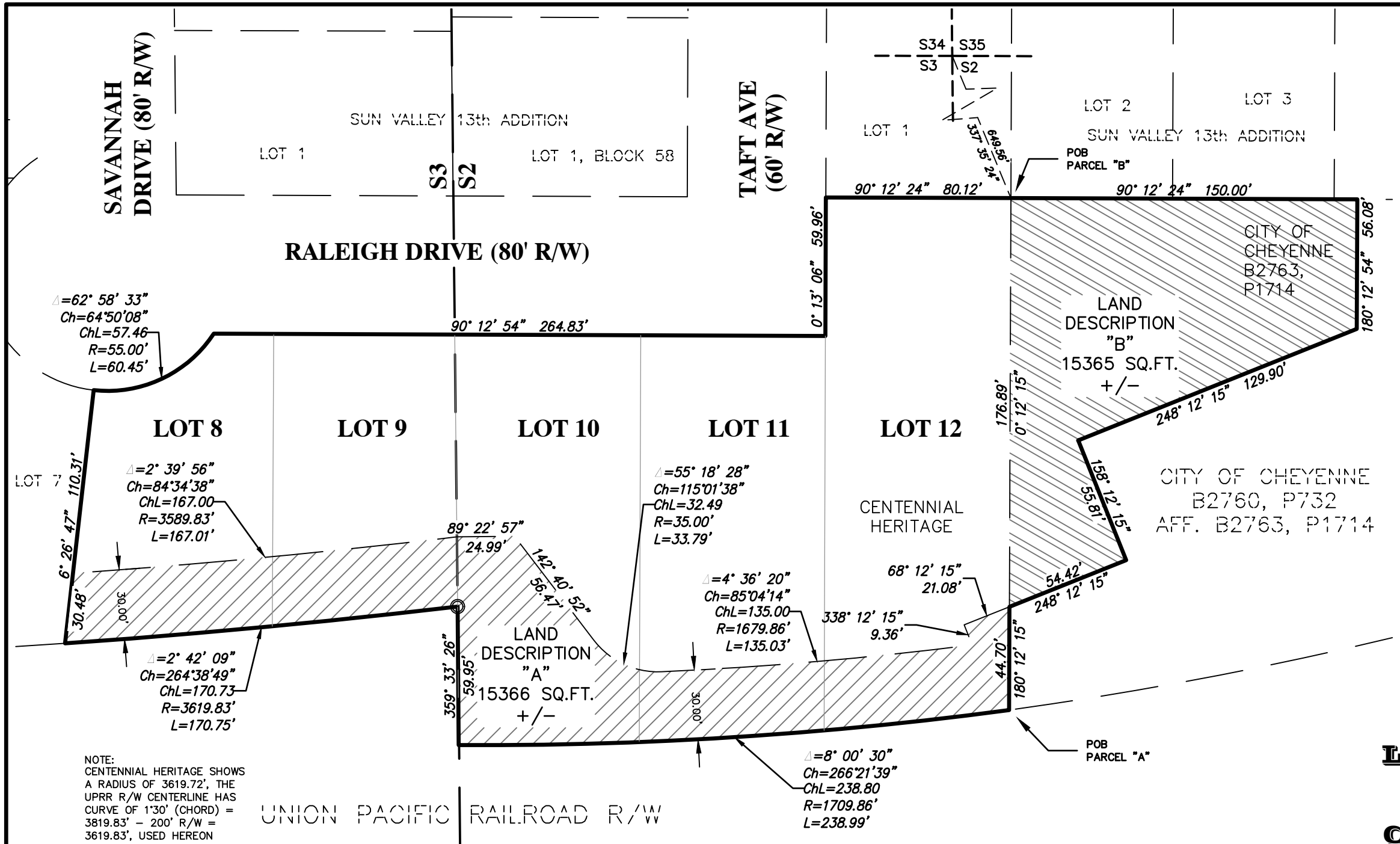
The foregoing instrument was acknowledged before me by Robert Chamberlain on behalf of Sun Valley Estates LLC, on this _____ day of _____, 2022.

Witness my hand and official seal.

Notary Public

My Commission Expires: _____

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LAND DESCRIPTION A
Parcel A (AKA a Portion of Block 2, Centennial Heritage)

A tract of land being a portion of Lots 8, 9, 10, 11 and 12, Block 2, Centennial Heritage, City of Cheyenne, Laramie County, Wyoming, being more particularly described as follows:

Beginning at the Southeasterly corner of said Lot 12; thence 238.99 feet, along a curve concave to the Northwest, being the South line of said Block 2, (having a radius of 1709.86 feet, delta of 08°00'30", and whose long chord bears 266°21'39", a distance of 238.80 feet) to the Southwesterly corner of said Lot 10; thence 359°33'26" along the Westerly line of said Lot 10, a distance of 59.95 feet to the Southeasterly corner of said Lot 9; thence 170.75 feet, along a curve concave to the northwest, being the South line of said Block 2, (having a radius of 3619.83 feet, delta of 02°42'09", and whose long chord bears 264°38'49", a distance of 170.73 feet) to the Southwesterly corner of said Lot 8; thence 06°26'47" along the Westerly line of said Lot 8, a distance of 30.48 feet; thence 167.01 feet, along a curve concave to the Northwest (having a radius of 3589.83 feet, delta of 02°39'56", and whose long chord bears 84°34'38", a distance of 167.00 feet); thence 89°22'57", a distance of 24.99 feet; thence 142°40'52", a distance of 56.47 feet; thence 33.79 feet, along a curve concave to the Northeast, (having a radius of 35.00 feet, delta of 55°18'28", and whose long chord bears 115°01'38", a distance of 32.49 feet); thence 135.03 feet, along a curve concave to the Northwest, (having a radius of 1679.86 feet, delta of 04°36'20", and whose long chord bears 85°04'14", a distance of 135.00 feet); thence 338°12'15", a distance of 9.36 feet; thence 68°12'15", a distance of 21.08 feet to the East line of said Lot 12; thence 180°12'15" along said East line, a distance of 44.70 feet to the Point Of Beginning.

Containing 15,366 square feet, more or less.

EXHIBIT A
LAND DESCRIPTION
EXHIBIT
FOR
CITY OF CHEYENNE
GREENWAY PARCEL
LAND SWAP

SITUATED IN A PORTION OF NW¼ SECTION 2, T.13N., R.66W. OF THE 6TH P.M., AND LOTS 8 THRU 12, BLOCK 2, CENTENNIAL HERITAGE SUBDIVISION, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING

PREPARED JANUARY, 2023

CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.



REVISED: 1/31/2023

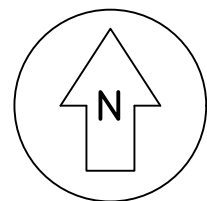
21425 CITY TRANSFER.DWG

LAND DESCRIPTION B
Parcel B (Unplatted City Land)

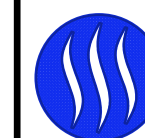
A portion of that parcel situated in Section 2, Township 13 North, Range 66 West of the 6th P.M., City of Cheyenne, Laramie County, Wyoming and described at Book 2763, Page 1714 in the real estate records of the Laramie County Clerk; said portion being more particularly described as follows:

Beginning at the Northeastly corner of Lot 12, Block 2, Centennial Heritage, from which the Northwest corner of Section 2 has an azimuth of 337°35'24", a distance of 649.56 feet, said point being on the South line of Sun Valley Addition, 13th Filing; thence along said South line, 90°12'24", a distance of 150.00 feet; thence 180°12'54", a distance of 56.08 feet, thence 248°12'15", a distance of 129.90 feet, thence 158°12'15", a distance of 55.81 feet, thence 248°12'15", a distance of 54.42 feet to the East line of said Lot 12, Centennial Heritage; thence 0°12'15", along said East line, a distance of 176.89 feet to the Point Of Beginning.

Containing 15,365 square feet, more or less.



0 50
Scale: 1" = 50'



STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
1108 WEST 19th ST. CHEYENNE, WY. 82001 • (307) 634-7273
756 GILCHRIST ST. WHEATLAND, WY. 82201 • (307) 333-9793
www.SteilSurvey.com • info@SteilSurvey.com



EXISTING GREENWAY
FUTURE GREENWAY

